



U.S. Department
of Transportation

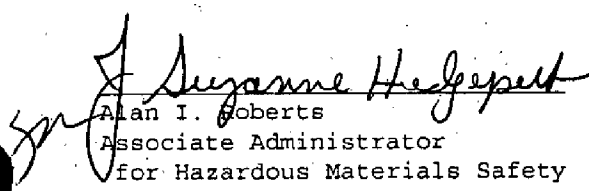
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9843 (EXTENSION)
ORIGINAL November 29, 1988

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9843 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to June 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUL 29 1994

(DATE)

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

Bruin Engineered Parts, Inc.
Midland, Ontario, Canada,

June 2, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 9843

NOV 29 1988

1. Bruin Engineered Parts, Incorporated (BEPI), Midland, Ontario, Canada (U.S. Agent - A. Kukla Associates, Rock Island, Illinois), is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark and sell the packaging described in paragraph 7 below for use in the transportation of the hazardous materials described in paragraph 3 below in commerce, subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of the described hazardous materials in a container conforming with the DOT Specification 2Q except for size, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on the application of BEPI dated August 13, 1987, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Compressed gas, n.o.s., as authorized in DOT 2Q containers, classed as nonflammable or flammable gases.

4. PROPER SHIPPING NAME (49 CFR 172.101). Compressed gas, n.o.s. or Consumer commodity, as appropriate.

5. REGULATIONS AFFECTED. 49 CFR 173.304(d)(3)(ii) and (e), 173.306(a)(3); 173.1200(a)(8); 178.33a.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, cargo-aircraft only.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a nonrefillable, non-DOT specification inside metal container conforming with BEPI drawing F0036 dated July 17, 1986, and the specifications contained in the original application on file with Office of Hazardous materials Transportation (OHMT), and DOT Specification 2Q (49 CFR 178.33a) except as follows:

178.33a-2 Type and size. The maximum capacity of the containers must be 56 cubic inches, (31 fluid ounces) nominal. The maximum diameter may not exceed 3.0 inches.

178.33a-5 Material.

(a) Uniform drawing quality aluminum alloy A 1100.

* * * * *

178.33a-8 Tests.

(a) One out of each lot of 1,000 containers or less, successively produced per day shall be pressure tested to destruction and must not burst below 400 psig.

* * * * *

178.33-9 Marking.

(a) ***

(1) "DOT-E 9843" in lieu of "DOT 2Q"

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each aircraft and vessel used to transport packages covered by this exemption.

b. Shippers may use the packaging covered by this exemption pursuant to the provisions of 49 CFR 173.22.

c. Each package must be prepared and shipped in accordance with the following:

(1) Each completed container as prepared for shipment must be heated until the pressure in the container is equivalent to the equilibrium pressure of the lading at 130°F. Lading equilibrium pressure must not exceed 140 psig at 130°F. Liquid content of lading must not completely fill the container at 130°F. Acceptable containers must show no evidence of leakage, distortion or other defect.

(2) The container must be packed in a strong outside packaging as prescribed in 49 CFR 173.301(k).

(3) Each outside packaging must be marked "INSIDE CONTAINERS COMPLY WITH PRESCRIBED REGULATIONS".

d. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

e. Each packaging manufactured in accordance with the requirements of this exemption must be marked in a manner which identifies the physical location (city and state) of the facility at which it is manufactured.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. November 31, 1989.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

NOV 29 1988

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials
Transportation, Research and Special Programs Administration, U.S.
Department of Transportation, Washington, D.C. 20590.. Attention:
Exemptions Branch.

Dist: FHWA, USOG, PRA, FAA